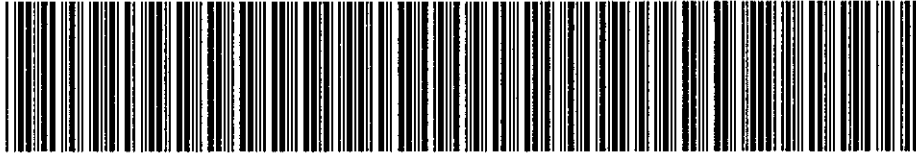


## EWR D&I ANNOTATION



FAN-000001L092001DP100-8042

**Artemis # :** 000001L092001DP100

**Record Created Date :**

**Printed Date :** 06/22/2010

**Description :**

DI09-096, SEQ ID 100. 2009 Q2. DRIVER OF A 2007 COBALT WAS COMING DOWN A ROAD WHEN SOMEONE RAN A STOP SIGN AND DRIVER HIT THEM. MAIN IMPACT WAS TO LEFT FRONT. DRIVER WAS INJURED IN ACCIDENT. AIR BAGS DID NOT DEPLOY. SPEED OF VEHICLE AND POLICE REPORT NOT GIVEN. VOQ-37. PURSUIT-0. TXB-0. RECALLS-0. \*RM



U.S. Department  
of Transportation  
**National Highway  
Traffic Safety  
Administration**

1200 New Jersey Avenue SE.  
Washington, DC 20590

**CERTIFIED MAIL**  
**RETURN RECEIPT REQUESTED**

December 16, 2009

Ms. Gay P. Kent  
General Motors Corp.  
Mail Code 480-210-G11  
30001 Van Dyke  
Warren, MI 48090

NVS-217kb  
DI09-096

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2<sup>nd</sup> quarter of 2009. We are writing to request additional information about the following incidents:

| Selected Death and Injury Incidents                                                                                                                                                                                                                                                                                                                                                                                                                              |  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| For Reporting Category: L                                                                                                                                                                                                                                                                                                                                                                                                                                        |  |
| For the following Sequence IDs: 3, 7, 15, 39, 63, 78, 81, 82, 85, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 98, 100, 101, 103, 105, 106, 107, 108, 109, 110, 131, 137, 145, 146, 148, 149, 158, 167, 168, 178, 209, 216, 219, 231, 243, 253, 254, 255, 256, 257, 258, 259, 261, 263, 264, 266, 270, 271, 276, 281, 282, 288, 289, 290, 291, 292, 293, 297, 299, 300, 311, 312, 327, 338, 339, 341, 343, 344, 345, 346, 348, 349, 351, 352, 354, 370, 382, 390, 391 |  |

Unless otherwise stated in the text, the following definitions apply to these information requests:

**Incident:** each incident identified in the above table.

**Claim and Notice:** shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

**Manufacturer:** refers to GM.

**Vehicle:** the vehicle produced by GM that is identified in the claim or notice.

**Tire:** the tire produced by GM that is identified in the claim or notice.

**Equipment:** the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

**Defect:** means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

**Document:** "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new



requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

126800

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **January 22, 2010**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief  
Early Warning Division  
Office of Defects Investigation  
Enforcement



GENERAL MOTORS LLC  
Global Interior and Safety Center

11 February 2010

Ms. Christina Morgan, Chief  
Early Warning Division, NVS-217  
Office of Defects Investigation  
National Highway Traffic Safety Administration  
1200 New Jersey Ave., S.E.  
Washington, DC 20590

NVS-217kb  
DI09-096

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated December 16th, 2009 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2009.

GM's response is comprised of 88 disks for the incidents that are the subject of DI09-096.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 3 18605620-675350 and 2009 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 3 18605620-675350\_00\_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index  
for the disk are as follows:

DI09-096  
3 18605620-675350  
2009 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**



Response: See attached document.

2. **Provide a copy of the Police Accident Report.**

Response: See attached documents and photographs.

The remaining document listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

3 18605620-675350 **\_01\_001** - is the first document responsive to Inquiry no. 1.

3 18605620-675350 **\_02\_001** - is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incident that is the subject of DI09-066, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

| <i>(88 Vehicles from the Light Vehicle Template)</i> |                                     |      |
|------------------------------------------------------|-------------------------------------|------|
| SEQUENCE ID                                          | VEHICLE IDENTIFICATION NUMBER (VIN) | TYPE |
| 3                                                    | 5GAER23D69J [REDACTED]              | NISM |
| 7                                                    | UNKNOWN                             | NISM |
| 15                                                   | 5GADS13S142 [REDACTED]              | NISM |
| 39                                                   | 1G6DU57V090 [REDACTED]              | LIT  |
| 63                                                   | UNKNOWN                             | NISM |
| 78                                                   | 1G1AL52F957 [REDACTED]              | NISM |
| 81                                                   | 1G1AK52F257 [REDACTED]              | NISM |
| 82                                                   | 1G1AK55F167 [REDACTED]              | NISM |
| 85                                                   | 1G1AK15F467 [REDACTED]              | NISM |
| 87                                                   | 1G1AK55F267 [REDACTED]              | NISM |



| SEQUENCE<br>ID | VEHICLE IDENTIFICATION NUMBER<br>(VIN) | TYPE |
|----------------|----------------------------------------|------|
| 88             | 1G1AM15B3677                           | NISM |
| 89             | 1G1AL15FX67                            | NISM |
| 90             | 1G1AK15F367                            | NISM |
| 91             | 1G1AL58F977                            | NISM |
| 92             | 1G1AK15F077                            | NISM |
| 93             | 1G1AK55F577                            | NISM |
| 94             | 1G1AK15F477                            | NISM |
| 95             | 1G1AK55F577                            | LIT  |
| 96             | 1G1AK15F077                            | NISM |
| 98             | 1G1AK58FX77                            | NISM |
| 100            | 1G1AK55FX77                            | NISM |
| 101            | 1G1AK15F477                            | NISM |
| 103            | 1G1AK18F887                            | NISM |
| 105            | 1G1AL58F287                            | NISM |
| 106            | 1G1AK18F187                            | NISM |
| 107            | 1G1AL58F987                            | NISM |
| 108            | 1G1AK58F987                            | NISM |
| 109            | 1G1AL58F987                            | NISM |
| 110            | 1G1AT58H097                            | NISM |
| 131            | 3GNDA23P76S                            | NISM |
| 137            | 3GNDA13D48S                            | NISM |
| 145            | 2G1WF52E049                            | NISM |
| 146            | 2G1WF52E249                            | NISM |
| 148            | 2G1WH52K049                            | NISM |
| 149            | 2G1WH52K049                            | NISM |
| 158            | 2G1WT58N279                            | NISM |
| 167            | 2G1WT57K791                            | NISM |
| 168            | 2G1WC57M591                            | NISM |
| 178            | 1G1ZG57B39F                            | NISM |
| 209            | 1GCEK24009Z                            | NISM |
| 216            | 1GCHK29K57E                            | NISM |
| 219            | 1GBJC34K78E                            | NISM |
| 231            | 1GNFC16047J                            | NISM |
| 243            | 1GNFK33059R                            | NISM |
| 253            | 1GNDS13S642                            | NISM |
| 254            | 1GNDT13S052                            | NISM |
| 255            | 1GNDT13S052                            | NISM |
| 256            | 1GNDS13SX52                            | NISM |
| 257            | 1GNDT13S852                            | NISM |
| 258            | 1GNDT13S052                            | NISM |
| 259            | 1GNDT13S352                            | NISM |
| 251            | 1GNDT13S662                            | NISM |
| 263            | 1GNDT13S682                            | NISM |
| 264            | 1GNDT13S882                            | NISM |
| 266            | 1GNDS33S892                            | NISM |
| 270            | 1GNES16S866                            | NISM |
| 271            | 1GNEV23D29S                            | NISM |

| SEQUENCE<br>ID | VEHICLE IDENTIFICATION NUMBER<br>(VIN) | TYPE |
|----------------|----------------------------------------|------|
| 276            | 1GNDU03E64D [REDACTED]                 | NISM |
| 281            | 1GKEV23D59J [REDACTED]                 | NISM |
| 282            | 1GKEV23D99J [REDACTED]                 | NISM |
| 288            | UNKNOWN                                | NISM |
| 289            | 1GKDS13S442 [REDACTED]                 | NISM |
| 290            | 1GKDT13S442 [REDACTED]                 | NISM |
| 291            | 1GKDT13S552 [REDACTED]                 | NISM |
| 292            | 1GKDS13S962 [REDACTED]                 | NISM |
| 293            | 1GKDS13S462 [REDACTED]                 | NISM |
| 297            | 1GKET16S956 [REDACTED]                 | NISM |
| 299            | 1GKES12S046 [REDACTED]                 | NISM |
| 300            | 1GKES12S956 [REDACTED]                 | NISM |
| 311            | 3GTEC13C48G [REDACTED]                 | NISM |
| 312            | 3GTEK13378G [REDACTED]                 | NISM |
| 327            | 5GTDN136568 [REDACTED]                 | NISM |
| 338            | 1G2ZF55B264 [REDACTED]                 | NISM |
| 339            | 1G2ZF55B064 [REDACTED]                 | NISM |
| 341            | 1G2ZG558364 [REDACTED]                 | NISM |
| 343            | 1G2ZH18N374 [REDACTED]                 | NISM |
| 344            | 1G2ZG58B574 [REDACTED]                 | NISM |
| 345            | 1G2ZH57N584 [REDACTED]                 | NISM |
| 346            | 1G2ZG57B384 [REDACTED]                 | NISM |
| 348            | 1G2ZH57N684 [REDACTED]                 | NISM |
| 349            | 1G2ZF57B584 [REDACTED]                 | NISM |
| 351            | 1G2ZJ57B494 [REDACTED]                 | NISM |
| 352            | 1G2ZH36N994 [REDACTED]                 | NISM |
| 354            | 6G2EC57Y19L [REDACTED]                 | NISM |
| 370            | 2G2WP552881 [REDACTED]                 | NISM |
| 382            | 5S3ET13S662 [REDACTED]                 | NISM |
| 390            | 5GZER13737J [REDACTED]                 | NISM |
| 391            | 5GZEV23748J [REDACTED]                 | NISM |

**2. Provide a copy of the Police Accident Report.**

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

**3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing



responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read 'G. Kent', written in a cursive style.

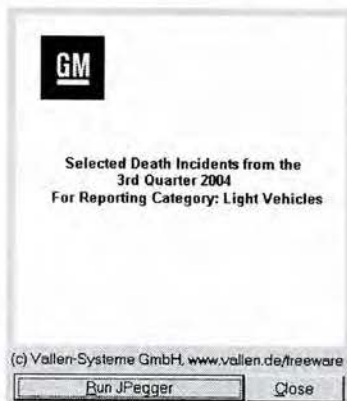
Gay P. Kent,  
Director, Product Investigations  
and Safety Regulations

Enclosures: 88 Disks  
Attachment A

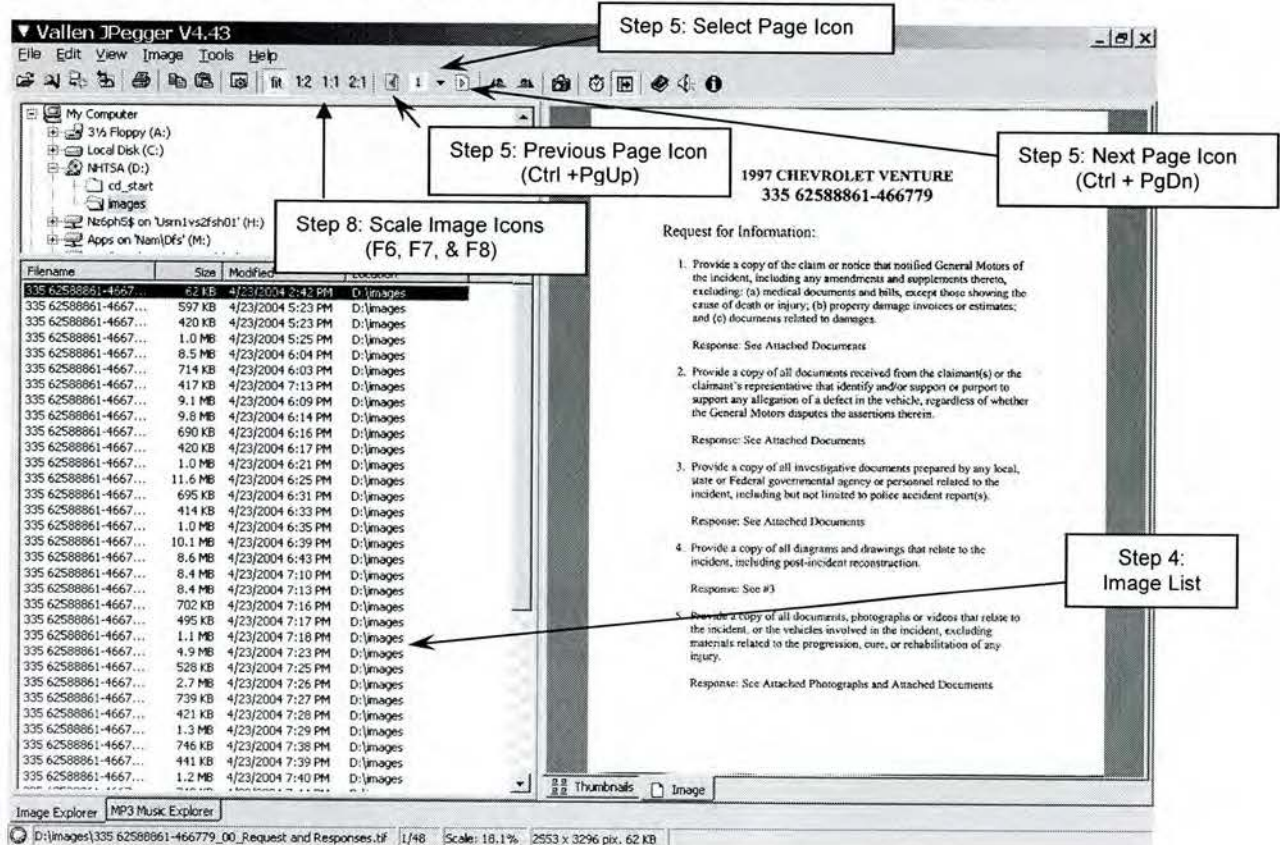
## Attachment A

### *Instructions for using Disk Viewer*

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)

ATTORNEY OR PARTY-RELATED ATTORNEY FIRM, with an address and e-mail address  
 ERIC D. PARIS, ESQ., S/B# 147836  
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES  
 381 S. THOMAS STREET  
 SUITE 403  
 POMONA, CALIFORNIA 91766  
 TELEPHONE NO. 909-469-5127 FAX NO. 909-469-5126  
 ATTORNEY FOR PLAINTIFF'S

WEST JUDGE OF COURT, JUDGE, DISTRICT, AND BRANCH COURT, IF ANY  
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA  
 INDIO COUNTY

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET  
☐ Limited ☒ Unlimited

Complex Case Designation  
☐ Counter ☐ Joinder  
 Filed with first appearance by defendant  
 (Cal. Rules of Court, rule 1811)

CASE NUMBER:  
 ASSIGNED JUDGE:

Please complete all five (5) items below.

1. Check one box below for the case type that best describes this case:

☒ Auto Tort (22)  
☐ Other PIP/DWD (Personal Injury/Property Damage/Wrongful Death) Tort  
☐ Assisted (24)  
☐ Product liability (24)  
☐ Medical malpractice (45)  
☐ Other PIP/DWD (23)  
☐ Non-PIP/DWD (Other) Tort  
☐ Business tort/unfair business practice (37)  
☐ Child rights (e.g., discrimination, false arrest) (55)  
☐ Defamation (e.g., slander, RAD) (13)  
☐ Fraud (18)  
☐ Intellectual property (19)  
☐ Professional negligence (e.g., legal malpractice) (25)  
☐ Other non-PIP/DWD tort (26)  
☐ Employment  
☐ Wrongful termination (36)  
☐ Contract  
☐ Breach of contract/warranty (46)  
☐ Collection (e.g., money owed, open book accounts) (39)  
☐ Insurance coverage (14)  
☐ Other contract (37)  
☐ Real Property  
☐ Eminent domain/condemnation (14)  
☐ Wrongful eviction (33)  
☐ Other real property (e.g., quiet title) (28)  
☐ Unlawful Detainer  
☐ Commercial (31)  
☐ Residential (32)  
☐ Drugs (34)  
☐ Juvenile Delinquency  
☐ Asset forfeiture (26)  
☐ Petition re: arbitration award (11)  
☐ Will of decedent (52)  
☐ Other probate matter (37)  
☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 188a-1812)  
☐ Antitrust/Trade regulation (33)  
☐ Construction defect (10)  
☐ Claims insurance monies tort (33)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring nonpartisan judicial management:  
 a. ☒ Large number of separately represented parties b. ☐ Large number of parties  
 c. ☒ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve d. ☐ Coordination in other counties  
 e. ☒ Substantial amount of documentary evidence f. ☐ Substantial post-trial issues

3. Type of remedies sought (check all that apply):  
 a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐ Other

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003

ERIC D. PARIS, ESQ., S/B# 147836  
 (Print on next page)

NOTICE  
 • Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except under the Probate, Family, or Welfare and Institutions Codes) (Cal. Rules of Court, rule 1800).  
 • File this cover sheet in addition to any cover sheet required by local court rule.  
 • If this case is complex under rule 1800 at seq. of the California Rules of Court, you must also file a notice of complexity with the action or proceeding.  
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

From Integrated for Mandatory Use  
 Superior Court of California  
 982.2(b)(1) Rev. January 1, 2008

CIVIL CASE COVER SHEET

Next Image  
 Previous Image  
 Next page Ctrl+PgDn  
 Previous page Ctrl+PgUp  
 Full screen image Ctrl+F11  
 Slide show F10  
 Fit Scale to fit F5  
 Scale 50% F6  
 Scale 100% F7  
 Scale 200% F8  
 Rotate left Ctrl+Alt+L  
 Rotate right Ctrl+Alt+R  
 Rotate by 180°  
 Copy to clipboard  
 Copy file to... Ctrl+C  
 Move file to... Ctrl+X  
 Rename file... F2  
 Delete file... Del  
 Export Image Information...  
 Preferences... Ctrl+H

Step 7: Next File (Image)

Step 7: Next page

Step 8: Scale Image

Step 7: Image Properties



**DI09-096**  
**100 278518279 – 674071**  
**2007 CHEVROLET COBALT**

**Request for Information:**

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: None.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

## Service Request Detail

|                      |                                                                                            |             |            |              |                                   |           |                         |
|----------------------|--------------------------------------------------------------------------------------------|-------------|------------|--------------|-----------------------------------|-----------|-------------------------|
| SR No.               | 71-728468299                                                                               | Ref No.     |            | Goodwill     | No Goodwill Offered               | BRC Type  | PAR                     |
| Account              |                                                                                            | Site        |            | GW SubType   |                                   | Bus. Unit | BRC                     |
| Last Name            |                                                                                            | First Name  |            | Approval     | Not Initiated                     | Area      | PAR                     |
| Daytime #            |                                                                                            | Evening #   |            | UCC          | Restraints - (SIR) - Driver Front | Sub-Area  | Initiate PAR- Collision |
| Address              |                                                                                            | City        | Midland    | Involved Dir |                                   | Safety    | Yes                     |
| State                | TX                                                                                         | Con Acct    |            | Source       | Phone                             | Updated   | 6/5/2009 10:45:22 AM    |
| Serial #/VIN         | 1G1AK55FX77                                                                                | Model Year  | 2007       | Priority     | Medium                            | License # |                         |
| Make                 | Chevrolet                                                                                  | Warr. Start | 01/31/2007 | Status       | Open                              | Owner     | MORALECR                |
| Model                | Cobalt                                                                                     | Mileage     | 38000      | Sub-Status   | Satisfied                         | Opened    | 5/29/2009 09:13:46 AM   |
| Abstract             | (ESIS) Restraints - (SIR) - Driver Front (Non-Deployment)                                  |             |            |              |                                   | Closed    |                         |
| Customer Description | This is a PAR File. Please do not Assume. Forward all inquiries to Crystal Morales @ 41326 |             |            |              |                                   |           |                         |

### Pre-PAR

|                           |                                                            |                |                   |                                                |               |                                                                                                                                                                                                                                                                                        |              |                |
|---------------------------|------------------------------------------------------------|----------------|-------------------|------------------------------------------------|---------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|----------------|
| PAR Notifier              | Incident Date/Time                                         | Injuries       | # Other Veh       | # People in Veh                                | Road Surface  | Road Cond.                                                                                                                                                                                                                                                                             | Fire Report# | Police Report# |
| Owner                     | 8/5/2008 09:00:00 PM                                       | Y              | 1                 | 1                                              | Asphalt       | Dry                                                                                                                                                                                                                                                                                    | n/a          | Unknown        |
| Driver Last Name          | Driver First Name                                          | Height         | DOB               | Disabilities                                   |               |                                                                                                                                                                                                                                                                                        |              |                |
|                           |                                                            |                |                   | Hip and lower back alignment, protruding discs |               |                                                                                                                                                                                                                                                                                        |              |                |
| Insurance Agent Last Name | Insurance Agent First Name                                 | Phone #        | Insurance Agency  |                                                |               |                                                                                                                                                                                                                                                                                        |              |                |
| Unknown                   | Unknown                                                    | (432) 694-1737 | Farmers Insurance |                                                |               |                                                                                                                                                                                                                                                                                        |              |                |
| Incident Loc              | Lenecia Road @ Lamsent Street Intersection, Midland, Texas |                |                   |                                                | Incident Desc | I was coming down Lenecia Road and someone ran a stop sign and I hit them. My air bags did not deploy. Impact was more to the left of my vehicle, after I hit him it pulled to the side. I hit boned him. Other driver drove away. My insurance covered the accident. I am in physical |              |                |
| Component                 | Air Bags                                                   |                |                   |                                                | Damage Desc   | hood, left front fender, bumper, grille, front facia                                                                                                                                                                                                                                   |              |                |
| Vehicle Loc               | Vehicle repaired                                           |                |                   |                                                | Add'l Info    | Insurance company paid out the claim for the repairs.                                                                                                                                                                                                                                  |              |                |
| Emgcy Svc Names           | Midland Police Department                                  |                |                   |                                                | Maint Loc     | All American Chevrolet                                                                                                                                                                                                                                                                 |              |                |

### PAR Detail

|                        |                                                      |                      |               |                         |                          |                                                                               |     |            |     |
|------------------------|------------------------------------------------------|----------------------|---------------|-------------------------|--------------------------|-------------------------------------------------------------------------------|-----|------------|-----|
| Collision              | Y                                                    | Non Collision        | N             | Property Damage         | N                        | Thermal Evt                                                                   | N   | Spec Equip | n/a |
| Vehicle Speed          | 40                                                   | Weather Condition    | Clear and Dry | Prop Owner              | n/a                      | Property Type                                                                 | n/a | Property   | n/a |
| Last Service Date      |                                                      | Loc Last Service     |               | Property Location       | n/a                      | Prop Est Repair Cost                                                          |     |            |     |
| Veh Est Repair Cost    |                                                      | Spec Equip Installer | n/a           | Prop Damage Description | n/a                      |                                                                               |     |            |     |
| Primary Veh Use        | Personal                                             | Inspection Type      |               | Inspected By            | Inspection Not Performed | Inspection Date/Time                                                          |     |            |     |
| Veh Damage Description | hood, left front fender, bumper, grille, front facia |                      |               |                         | Explain Other            | File going to ESIS: Unknown last service date, Unknown estimated repair cost. |     |            |     |

## Service Request Detail

### PAR Injuries

|                                                                                                                                                           |            |              |                             |                                           |             |                |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------|------------|--------------|-----------------------------|-------------------------------------------|-------------|----------------|
| Last Name                                                                                                                                                 | First Name | DOB          | Location                    | Phone #                                   | Seating Pos | Restraint Type |
|                                                                                                                                                           |            |              | Occupant of Owner's Vehicle |                                           | Driver      | Seat Belt      |
| Injury Description                                                                                                                                        |            | Medical Rpt# |                             | Treatment Location                        |             | Treated By     |
| I am in physical therapy as my hand goes numb, neck pain, continual headaches from the neck pain, midway down my back to my shoulders is in constant pain |            | Unknown      |                             | Midland Memorial Hospital, Midland, Texas |             | Dr. Dorman     |
| Street Address                                                                                                                                            |            | City         |                             | State                                     | Zip Code    |                |
|                                                                                                                                                           |            | Midland      |                             | TX                                        |             |                |

### Activities

|                       |                    |             |               |                   |             |           |                  |
|-----------------------|--------------------|-------------|---------------|-------------------|-------------|-----------|------------------|
| Created               | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status      | Completed | Description      |
| 6/8/2009 11:47:36 AM  | RODRIGOS           | ESISBIQU    | Escalation    | ESIS - Injuries   | In Progress |           | Assigned to ESIS |
| Contact Last Name     | Contact First Name |             | Account       |                   | BAC Code    |           |                  |
|                       |                    |             |               |                   |             |           |                  |
| Comments              |                    |             |               |                   |             |           |                  |
| injuries              |                    |             |               |                   |             |           |                  |
| Confidential Comments |                    |             |               |                   |             |           |                  |

|                               |                    |             |               |                   |          |                      |                 |
|-------------------------------|--------------------|-------------|---------------|-------------------|----------|----------------------|-----------------|
| Created                       | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status   | Completed            | Description     |
| 6/5/2009 11:53:00 AM          | GARCIAJR           | RODRIGOS    | Notify CRM    |                   | Done     | 6/8/2009 11:47:35 AM | ESIS - Injuries |
| Contact Last Name             | Contact First Name |             | Account       |                   | BAC Code |                      |                 |
|                               |                    |             |               |                   |          |                      |                 |
| Comments                      |                    |             |               |                   |          |                      |                 |
| Received And Assigned to ESIS |                    |             |               |                   |          |                      |                 |
| Jose Rodriguez ATX PAR        |                    |             |               |                   |          |                      |                 |
| Confidential Comments         |                    |             |               |                   |          |                      |                 |

|                       |                    |             |                   |                            |          |                      |                            |
|-----------------------|--------------------|-------------|-------------------|----------------------------|----------|----------------------|----------------------------|
| Created               | Created By         | Assigned To | Activity Type     | Activity Sub-Type          | Status   | Completed            | Description                |
| 6/5/2009 10:45:22 AM  | MORALECR           | MORALECR    | Ownership Changed | Ownership Escalated to BRC | Done     | 6/5/2009 10:45:23 AM | Ownership Escalated to BRC |
| Contact Last Name     | Contact First Name |             | Account           |                            | BAC Code |                      |                            |
|                       |                    |             |                   |                            |          |                      |                            |
| Comments              |                    |             |                   |                            |          |                      |                            |
| Confidential Comments |                    |             |                   |                            |          |                      |                            |



## Service Request Detail

### Activities

| Created              | Created By         | Assigned To | Activity Type       | Activity Sub-Type | Status          | Completed | Description   |
|----------------------|--------------------|-------------|---------------------|-------------------|-----------------|-----------|---------------|
| 6/5/2009 10:38:07 AM | MORALECR           | MORALECR    | Scheduled Follow-up |                   | Scheduled Alarm |           | Check on ESIS |
| Contact Last Name    | Contact First Name |             | Account             |                   | BAC Code        |           |               |

Comments

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status   | Completed            | Description     |
|----------------------|--------------------|-------------|---------------|-------------------|----------|----------------------|-----------------|
| 6/5/2009 10:36:33 AM | MORALECR           | GARCIAJR    | BRC PAR       | ESIS- Injuries    | Done     | 6/5/2009 11:52:59 AM | Forward to ESIS |
| Contact Last Name    | Contact First Name |             | Account       |                   | BAC Code |                      |                 |

Comments

Injuries-Nerve damage for which customer was treated at Midland Memorial Hospital.

Crystal Morales/APR/ATX

Received and assigned for ESIS escalation.

Joe GIATX/Workflow Par

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type       | Activity Sub-Type | Status   | Completed            | Description          |
|----------------------|--------------------|-------------|---------------------|-------------------|----------|----------------------|----------------------|
| 6/4/2009 04:52:56 PM | MORALECR           | MORALECR    | Scheduled Follow-up |                   | Done     | 6/5/2009 10:36:31 AM | Complete ACK and INI |
| Contact Last Name    | Contact First Name |             | Account             |                   | BAC Code |                      |                      |

Comments

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type     | Activity Sub-Type | Status   | Completed            | Description                                                       |
|----------------------|--------------------|-------------|-------------------|-------------------|----------|----------------------|-------------------------------------------------------------------|
| 6/4/2009 02:08:03 PM | GARCIAJR           | MORALECR    | Ownership Changed |                   | Done     | 6/4/2009 02:08:03 PM | Service Request Ownership has changed FROM: CARVALME TO: MORALECR |
| Contact Last Name    | Contact First Name |             | Account           |                   | BAC Code |                      |                                                                   |

Comments

Confidential Comments

## Service Request Detail

### Activities

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type      | Status | Completed            | Description |
|----------------------|--------------------|-------------|---------------|------------------------|--------|----------------------|-------------|
| 6/4/2009 02:07:44 PM | GARCIAJR           | MORALECR    | BRC PAR       | Initial Contact- Phone | Done   | 6/5/2009 10:33:28 AM | called      |
| Contact Last Name    | Contact First Name | Account     | BAC Code      |                        |        |                      |             |

#### Comments

Cust sts I was coming down Lenecia Road and someone ran a stop sign and I hit them. My air bags did not deploy. Impact was more to the left of my vehicle, after I hit him it pulled to the side. It boned him. Other driver drove away. My insurance covered the accident. I am in physical therapy as my hand goes numb, neck pain, continual headaches from the neck pain, midway down my back to my shoulders is in constant pain. I am out of work because of the injuries I suffered. I am now disabled.

Cust sks why the air bags did not deploy.

CRS advsd how air bags operated and advsd that due to the nature of the file/injuries the case will need to go to our Central Claims office. CRS advsd that an agent from Central Claims will follow up with the customer in 7 to 10 business days. CRS advsd if no one has contacted cust by the 10th business day please contact me and I can provide their number and the name of the agent handling the case.

Crystal Morales/PAR/ATX

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type       | Status | Completed            | Description |
|----------------------|--------------------|-------------|---------------|-------------------------|--------|----------------------|-------------|
| 6/4/2009 02:07:38 PM | GARCIAJR           | MORALECR    | BRC PAR       | Initial Contact- Dealer | Done   | 6/4/2009 04:42:43 PM | Waived      |
| Contact Last Name    | Contact First Name | Account     | BAC Code      |                         |        |                      |             |

#### Comments

Veh has not been to a dealer in over two years.

Crystal Morales/PAR/ATX

Confidential Comments

## Service Request Detail

### Activities

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type    | Status | Completed            | Description                        |
|----------------------|--------------------|-------------|---------------|----------------------|--------|----------------------|------------------------------------|
| 6/4/2009 02:05:24 PM | GARCIAJR           | MORALECR    | BRC PAR       | Initial Contact- AVM | Done   | 6/5/2009 10:36:15 AM | called Perez Alexander 972075 6525 |
| Contact Last Name    | Contact First Name | Account     | BAC Code      |                      |        |                      |                                    |

#### Comments

DVM Name: Perez Alexander

Node/Mail box: 972075 6525

This is Crystal Morales calling from the GM Product Allegation Dept to make you aware of a file that was received in your area.

The request number is: 71-728468299

The Customer's name is (spell):

The dealer involved is: None

Located in (be specific): None

The vehicle is a (year/make/model): 2007 Chevrolet Cobalt

With current mileage: 38000

The last 8 digits of the VIN# are: X77

This involves a frontal collision where the cust believes that the air bags should have deployed but they did not. Cust was injured and has nerve damage for which she has been treated since 08/08. We will be fully investigating this allegation by forwarding to central claims.. This message is for informational purposes only, and requires no action on your part at this time. However, if you do have any questions please feel free to give me a call. Provided contact info.

Crystal Morales/PAR/ATX

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status | Completed            | Description |
|----------------------|--------------------|-------------|---------------|-------------------|--------|----------------------|-------------|
| 6/4/2009 02:05:18 PM | GARCIAJR           | MORALECR    | BRC PAR       | Acknowledgement   | Done   | 6/5/2009 10:01:04 AM | called      |
| Contact Last Name    | Contact First Name | Account     | BAC Code      |                   |        |                      |             |

#### Comments

Crs Adv: This is Crystal Morales calling from the GM Product Allegation Dept. I have received your file and do require further information. Do you have a moment to speak to me?

Cust sts: Yes

Continued in Initial

Crystal Morales/PAR/ATX

Confidential Comments

## Service Request Detail

### Activities

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status   | Completed            | Description   |
|----------------------|--------------------|-------------|---------------|-------------------|----------|----------------------|---------------|
| 6/4/2009 02:05:13 PM | GARCIAJR           | MORALECR    | Notify CRM    |                   | Done     | 6/4/2009 04:40:46 PM | File assigned |
| Contact Last Name    | Contact First Name |             | Account       |                   | BAC Code |                      |               |

Comments

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status   | Completed            | Description  |
|----------------------|--------------------|-------------|---------------|-------------------|----------|----------------------|--------------|
| 6/4/2009 02:05:08 PM | GARCIAJR           | MORALECR    | Research      |                   | Done     | 6/5/2009 10:30:41 AM | Research vin |
| Contact Last Name    | Contact First Name |             | Account       |                   | BAC Code |                      |              |

Comments

No recalls. No other cases.

Crystal Morales/APR/ATX

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status   | Completed            | Description                                |
|----------------------|--------------------|-------------|---------------|-------------------|----------|----------------------|--------------------------------------------|
| 6/4/2009 02:04:55 PM | GARCIAJR           | MORALECR    | BRC PAR       | Case Assigned     | Done     | 6/4/2009 04:40:40 PM | File assigned to Crystal Morales ext 41326 |
| Contact Last Name    | Contact First Name |             | Account       |                   | BAC Code |                      |                                            |

Comments

Confidential Comments

| Created              | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status   | Completed            | Description                                           |
|----------------------|--------------------|-------------|---------------|-------------------|----------|----------------------|-------------------------------------------------------|
| 6/4/2009 02:04:49 PM | GARCIAJR           | CARVALME    | SR Opened     |                   | Done     | 6/4/2009 02:04:50 PM | SR in Status of Closed has been Re-Opened by GARCIAJR |
| Contact Last Name    | Contact First Name |             | Account       |                   | BAC Code |                      |                                                       |

Comments

Confidential Comments



## Service Request Detail

### Activities

| Created              | Created By         | Assigned To | Activity Type            | Activity Sub-Type | Status   | Completed            | Description                                   |
|----------------------|--------------------|-------------|--------------------------|-------------------|----------|----------------------|-----------------------------------------------|
| 6/4/2009 02:04:48 PM | GARCIAJR           | CARVALME    | SR Closed - Dissatisfied |                   | Done     | 6/4/2009 02:04:48 PM | Service Request has been Closed Dissatisfied. |
| Contact Last Name    | Contact First Name |             | Account                  |                   | BAC Code |                      |                                               |

Comments

Confidential Comments

| Created               | Created By         | Assigned To | Activity Type | Activity Sub-Type | Status   | Completed            | Description                      |
|-----------------------|--------------------|-------------|---------------|-------------------|----------|----------------------|----------------------------------|
| 5/29/2009 09:56:07 AM | CARVALME           | GARCIAJR    | Escalation    | Initiate PAR      | Done     | 6/4/2009 02:04:43 PM | Assigning activity to PAR QUEUE. |
| Contact Last Name     | Contact First Name |             | Account       |                   | BAC Code |                      |                                  |

Comments

CRS advised that a person from the PAR Department will contact the customer within 5\* business days

Received and assigned in PAR.

Joe G/ATX/Workflow Par

Confidential Comments

| Created               | Created By         | Assigned To | Activity Type         | Activity Sub-Type | Status   | Completed             | Description |
|-----------------------|--------------------|-------------|-----------------------|-------------------|----------|-----------------------|-------------|
| 5/29/2009 09:30:40 AM | CARVALME           | CARVALME    | Inbound Call Customer | Complex Request   | Done     | 5/29/2009 09:53:42 AM | PRE PAR     |
| Contact Last Name     | Contact First Name |             | Account               |                   | BAC Code |                       |             |

Comments

Cust State: I was in a accident where the air bag did not deploy. I was coming down Iamsent steel and someone ran a stop sign and hit me and the air bag did not deploy. He drove off and my insurance had to take care of it. Im going to phisel therpy, my hand goes numb and neck hurts, head hurts had to quit working. ALL AMERICAN CHEVROLET OF MIDLAND had done all of my repairs with the accident.

CRS Advised: SOme one from our PAR Dept will be in contact with in 5 days.

Cust State: Thanks

Melanie Carvalha/stj/cac/t1

Confidential Comments

### UCC Information

| UCC Code | Symptom              | Description                       |
|----------|----------------------|-----------------------------------|
| C46      | SIR - Did Not Deploy | Restraints - (SIR) - Driver Front |